

26STCV08744 26STCV08744

County: los-angeles

Division: Civil Law and Motion

Department: 316

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Case Number: 26STCV08744 Hearing Date: June 23, 2026 Dept: 316

BACKGROUND

This case involves a failed real

estate relationship. Plaintiff Lisa Bosworth hired Defendants PLG Estates Inc.

and Jason Boritz to help secure investment properties in California. Plaintiff

alleges that Defendants improperly persuaded her to overspend on the property

and subsequent renovations. Due to this over-expenditure, Plaintiff was unable

to secure a return on her investment.

On Mar 1, 2026, Plaintiff

filed a complaint against Defendants. The complaint alleged five causes of

action stemming from the facts alleged above.

On May 15, 2026, Defendant

Jason Boritz filed a Motion to Quash Service of Summons ("Motion").

No opposition or reply has

been filed.

TENTATIVE

RULING

Defendant

Boritz's Motion to Quash Service of Summons is DENIED without prejudice.

Once

Plaintiff files a proof of service or otherwise asserts that she has served

Defendant Boritz with the summons and other relevant documents, the Motion may

be refiled.

LEGAL

STANDARD

Compliance

with the statutory procedures for service of

process is essential

to establish personal jurisdiction. (See *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426,

1444.) Thus, a court lacks personal jurisdiction over a party if they have not been

properly served. (See *Ruttenberg*

v. Ruttenberg (1997) 53

Cal.App.4th 801, 808.) The filing of a proof of service creates a

rebuttable presumption that the service was proper, but only if the proof

of service satisfies relevant statutory requirements. (*Id.* at 1441-42.)

“A

defendant, on or before the last day of his or her time to plead or within any

further time that the court may for good cause allow, may serve and file a notice of motion. . . (1) To quash service of summons on the ground of lack of

jurisdiction of the court over him or her.”

(Code Civ. Proc., §

DISCUSSION

Here, Plaintiff

has not filed a Proof of Service of Summons or otherwise claimed to have served

Defendant Boritz. Therefore, the Court does not find a basis to quash service

of the summons when there is no evidence that Plaintiff purports to have served

the moving Defendant. Accordingly, Boritz’s Motion is denied without prejudice.

Boritz may refile this Motion once Plaintiff asserts that she has served Boritz

with the summons and other relevant papers.

CONCLUSION

In sum, Defendant

Boritz’s Motion to Quash Service of Summons is DENIED without prejudice.